

SENATE JOINT RESOLUTION 145

By McNally

A RESOLUTION to honor the memory of W.J. Michael Cody of Memphis.

WHEREAS, the members of this General Assembly were deeply saddened to learn of the death of W.J. Michael Cody of Memphis, a highly respected attorney and public servant who was known as a model of integrity, fairness, and courage; and

WHEREAS, a former Attorney General and Reporter for the State of Tennessee, Michael Cody also served as the United States Attorney for the Western District of Tennessee and, as a young attorney, represented Dr. Martin Luther King, Jr., during his 1968 visit to Memphis to support the striking sanitation workers; and

WHEREAS, born on March 13, 1936, in Memphis, Mr. Cody was educated in the public schools of Memphis, received his Bachelor of Arts degree with distinction from Rhodes College in 1958, and earned his Juris Doctor degree from the University of Virginia School of Law in 1961; and

WHEREAS, a military veteran, he ably served his nation as a member of the United States Army Reserve, where he attained the rank of First Lieutenant; and

WHEREAS, a partner at Burch Porter & Johnson since 1961, Mr. Cody was instrumental in the legal team representing Dr. Martin Luther King, Jr.'s work in Memphis, successfully convincing a judge to lift an injunction preventing the strikers from marching; he met with the civil rights leader at the Lorraine Motel not long before Dr. King was assassinated on the balcony outside his hotel room; and

WHEREAS, following Dr. King's death, Mr. Cody and Pastor James Lawson formed a neighborhood legal services operation to offer free aid to the sanitation workers. The idea blossomed into the organization now known as Memphis Legal Services; and

WHEREAS, seeking to improve the lives of his fellow Memphians, Mike Cody offered himself for public service and won election to an at-large seat on the Memphis City Council in 1975 and unsuccessfully ran for mayor of Memphis in 1982; and

WHEREAS, in 1977, he was nominated by President Jimmy Carter to serve as the United States Attorney for the Western District of Tennessee; as the chief federal prosecutor in West Tennessee, he played a prominent role in the prosecution and conviction of corruption charges against a number of powerful and prominent public officials at both the State and local levels; and

WHEREAS, in 1984, Michael Cody was appointed by the Tennessee Supreme Court to serve as Attorney General and Reporter for the State of Tennessee, during which time he argued four cases before the United States Supreme Court; and

WHEREAS, he served with distinction on a number of State entities, including the Tennessee Code Commission, the Tennessee Judicial Council, and the Tennessee Sentencing Commission; and

WHEREAS, the co-author of the 1992 book *Honest Government: An Ethics Guide for Public Service*, Mike Cody was appointed by Governor Phil Bredesen to serve as co-chair of the Tennessee Commission on Ethics to recommend revisions to state ethics laws in 2005; and

WHEREAS, an esteemed member of the legal profession, Mr. Cody was a member of the Memphis and Shelby County Bar Association, the Tennessee Bar Association, the American Bar Association, the Federal Bar Association, and Phi Delta Phi legal fraternity; and

WHEREAS, he was a former member of the Attorney General's Advisory Committee of United States Attorneys, the Southern Association of Attorneys General, and the National Association of Attorneys General; and

WHEREAS, no stranger to awards and accolades, Mike Cody received a number of national and local honors and served on the boards of many significant organizations, including the National Civil Rights Museum and the Memphis in May International Festival; and

WHEREAS, a gentleman of many pursuits, Mr. Cody was an avid runner who logged more than 80,000 miles and participated in more than a dozen Boston Marathons; he once completed a two-day, seventy-mile run along the Appalachian Trail; and

WHEREAS, a member of the Tennessee Sports Hall of Fame, Mike Cody was captain of the track and basketball teams at East High School in Memphis and ran cross country and played basketball at Rhodes College; and

WHEREAS, Mike Cody enjoyed the loving companionship of his beloved wife of forty-two years, Suzanna Marten Cody. He was the proud father of two daughters, Jane Cody and Mia Cody, and a son, Michael Cody, and loving grandfather of three grandchildren and two great-grandchildren; and

WHEREAS, committed to the highest ideals of public service, Mike Cody leaves behind an indelible legacy of integrity and probity in public life, compassion and loyalty in private life, and diligence and dedication in all his chosen endeavors; and

WHEREAS, it is fitting that this General Assembly should pause to remember the bountiful life of this exceptional public servant and human being, whose contributions to the government and citizens of Tennessee stand as a monument to a job well done; now, therefore,

BE IT RESOLVED BY THE SENATE OF THE ONE HUNDRED FOURTEENTH GENERAL ASSEMBLY OF THE STATE OF TENNESSEE, THE HOUSE OF REPRESENTATIVES CONCURRING, that we honor the memory of W.J. Michael Cody, reflecting fondly upon his impeccable character and his stalwart commitment to living the examined life with courage and conviction.

BE IT FURTHER RESOLVED, that we express our sympathy and offer our condolences to the family of Mr. Cody.

BE IT FURTHER RESOLVED, that an appropriate copy of this resolution be prepared for presentation with this final clause omitted from such copy and upon proper request made to the appropriate clerk, the language appearing immediately following the State seal appear without House or Senate designation.

